

December 11, 2023

POTTSTOWN BOROUGH COUNCIL

ANNOUNCEMENT

Borough Manager Keller explained the format for this evening's meeting, advising that the meeting is a GoTo Virtual Meeting and an in-person meeting. All persons wishing to speak during Public Comment, whether participating by GoToMeeting or telephone, must submit their name and address through chat or email at administration@pottstown.org. Requests to speak will be accepted until 7:05p.m., at which time chat will be closed, and no further requests for comment will be honored. As always, Public Comment will be limited to three minutes per person.

CALL TO ORDER

The regular meeting of the Pottstown Borough Council was called to order on Monday, December 11, 2023 at 7:00 p.m. as a hybrid, in-person and Go-To Meeting, with President Weand in the Chair.

INVOCATION

President Weand requested a moment of silence.

PLEDGE OF ALLEGIANCE

ROLL CALL

Councilors present were Ryan Procsal, Lisa Vanni, Donald Lebedynsky, Dan Weand and Andrew Monastra. Also present were Mayor Stephanie Henrick, Manager Justin Keller, Assistant Manager Zach Nelson, Solicitor Charles Garner (virtual) and Borough Secretary Virginia Takach. Councilor Trenita Lindsay was absent.

APPROVAL OF MINUTES

Motion by Councilor Vanni, seconded by Councilor Monastra to approve the minutes of November 13, 2023 as presented. Motion carried: 6 ayes.

SUBCOMMITTEE REPORTS

a. Finance & Administration – President Weand reported that the General Fund revenues. at 83% of the fiscal year, are at 101% and expenses at 82%. Real Estate taxes collected are at 99% and local taxes at 98%. He added that assessment changes year-to-date are \$17,072,490 and property transfers continue to be addressed with the School District. There were no new Lerta applications. President Weand also advised that the committee is reviewing additional information from organizations that the Borough supports. He also noted that the North End Fire Company and the Philadelphia Steam Fire Company have reported a profit. President Weand advised that the Library is operating at a loss, with the only local municipality not funding the Library is Upper Pottsgrove Township.

b. Safety – Mayor Henrick reported an uptake on vehicle break-ins, possibly due to the tik tok

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challenge. The cars are specifically Kia's and Hyundai's. The Police Department is adding extra patrols and there have been 6 arrests to date. The Department is also issuing clubs as safety locks.

c. Economic Development & Business Liaison – Ms. Lee-Clark provided a video history of the former Plating Works, now known as DJ Pallets. She reviewed the progress of the building over the last ten years. The building was environmentally contaminated and with the assistance of the Borough and the School District with \$102,000 in revenue, owner John Johns remediated the building to a successful property and business entity.

Ms. Lee Clark also presented a video with the December 2nd and 3rd Holiday events throughout town, including Santa's arrival and the Tree Lighting in Smith Family Plaza and thanked all involved with the celebration including Danette Wilson for her efforts. She also announced the Step Challenge winners John Richter and Emery Manns, each receiving \$50 gift cards.

Ms. Lee Clark also noted several new businesses opening in town and urged all to use the Yiftee online gift cards and to shop small all year. She commented that there were a few parking complaints that will be addressed next year.

COMMITTEE REPORTS

a. Land Bank – Ms. Lee-Clark advised that the Land Banks has acquired its 7th property, 403 Walnut Street and will be advertised in January 2024.

b. EAC – Mr. Derr welcomed Assistant Manager Nelson and thanked him for attending the recent meeting. He reviewed ongoing issues such as renewable energy, sustainable energy and carbon neutral efforts for Pottstown. He advised that members were invited to a clean energy event by the Community Action for Clean Energy for the Philadelphia region.

c. Regional Planning – Councilor Procsal noted that the committee discussed projects for the new year.

d. Blighted Property Review Committee – Councilor Procsal reported there was no meeting.

COMMENTS FROM CITIZENS PRESENT

a. Chris Brickhouse, 103 Jay Avenue, Phoenixville – commented that all but one Councilor voted to appeal a case using taxpayer dollars to allow the Borough to arrest people. He urged Council members to meet with the homeless individuals. He addressed Councilor Monastra specifically for his disrespectful comments on his Facebook page. Mr. Brickhouse noted that he receives no salary and works with the homeless on his own free time. He noted that Pottstown has not resolved this problem in 40 years and should look to Phoenixville for a resolution.

b. Leanne Moyer 43 Sugar Maple Road, Barto – stated that she owns Leanne's Life Saving Fairy Group and started the organization due to losing her best friend to the streets of Pottstown. She also commented on Councilor Monastra's Facebook posts and asked Council for a solution.

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c. Mike Hays, 330 West 3rd Street, Bridgeport – noted that across Pennsylvania there is currently a shortage of 267,000 rental units. He added that a solution is to look at zoning roadblocks and use of tiny homes. This would result in a decrease of evictions and people living on the street. He added that outdated parking requirements deter affordable housing unit projects.

d. Robert Haines, 1101 North Franklin Street – noted his frustration and anger against Tom Niarhos, the Beacon of Hope, St. Paul’s Church, the Council and the Pottstown Mayor for allowing the illegal homeless shelter. He expressed his anger that Tom Niarhos has not been charged for having a deadly weapon in his home and allowed his son to access the weapon used to kill an individual. He also submitted a letter from his wife, Kathryn Haines, who could not be present, with similar comments addressed to Council.

e. Doug Slick, 474 North Evans Street – commended all involved for having the downtown and Borough Hall looking great and festive. He also submitted a petition to Council with 300 signatures from the Tri-County Area in support of the unhoused individuals living on streets and in parks.

NEW BUSINESS

a. 2024 Budget - Motion by Councilor Lebedynsky, seconded by Councilor Vanni to approve the 2024 Budget with total revenues of \$66,443,935 and total expenditures of \$66,443,935 as outlined in the 2024 Proposed Budget. Motion carried: 6 ayes.

b. 2024 Tax Rate – Motion by Councilor Procsal, seconded by Councilor Lebedynsky to adopt an Ordinance to fix the Borough tax rate for real property for the Year 2024 as follows:

Tax Rate for General purposes, the sum of	10.661 mills
For Street Light purposes, the sum of	.337 mills
For Parks and Recreation purposes, the sum of	1.215 mills
For Library purposes, the sum of	.278mills
For Fire Protection purposes, the sum of	2.031 mills
For Debt purposes, the sum of	<u>.087 mills</u>
TOTAL	14.609 mills

ORDINANCE NO. 2229

AN ORDINANCE OF THE BOROUGH OF POTTSTOWN MONTGOMERY COUNTY,
PENNSYLVANIA, FIXING THE TAX RATE FOR THE YEAR 2024

Motion carried: 6 ayes.

c. Fee Resolution Amendment - Motion by Councilor Lebedynsky, seconded by Councilor Procsal to adopt a Resolution to amend fees associated with Trash and Refuse Disposal

RESOLUTION NO. 2023-21

A RESOLUTION AMENDING THE FEE SCHEDULE OF THE BOROUGH OF POTTSTOWN
TO AMEND FEES ASSOCIATED WITH TRASH AND REFUSE DISPOSAL

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WHEREAS, the Burgess and Town Council of the Borough of Pottstown adopted a Comprehensive Fee Resolution on July 10, 1995; and

WHEREAS, the Borough periodically reviews the Fee Schedule to determine if additions and/or amendments to the Fee Schedule are necessary and proper; and

WHEREAS, based upon the recommendation of the Borough staff, the Borough of Pottstown desires to revise the Comprehensive Fee Resolution.

NOW, THEREFORE, BE IT AND IT IS HEREBY RESOLVED by the Burgess and Town Council of the Borough of Pottstown, Montgomery County, Pennsylvania, as follows:

SECTION 1. The following fees associated with trash service are hereby amended to read as follows:

Annual Service Charge (\$ 95.44 per quarter) for the collection and disposal of garbage, rubbish, refuse and recycling for each residential unit. \$381.76 per year

SECTION 2. All future modifications of these fees and other fees established by the Comprehensive Fee Schedule shall be made by Resolution, from time to time, duly adopted by the Burgess and Town Council of the Borough of Pottstown.

SECTION 3. This Resolution shall become effective immediately upon enactment, although the fees shall become effective January 1, 2024.

ENACTED and RESOLVED this 11th day of December, 2023.

Motion carried: 6 ayes.

d. AFSCME CBA - Motion by Councilor Lebedynsky, seconded by Councilor Vanni to approve and authorize execution of a Collective Bargaining Agreement between the Borough of Pottstown and AFSCME for a three (3) year contract to expire December 31, 2026

Solicitor Garner confirmed that the AFSCME members have voted to ratify the proposed three-year agreement to begin January 1, 2024.

Motion carried: 6 ayes.

e. 215 South Washington Street - Motion by Councilor Procsal, seconded by Councilor Lebedynsky to grant the request of 215 South Washington Street, LLC, for a Waiver of the Land Development Process for property located at 215 South Washington Street. Motion carried: 6 ayes.

f. Chestnut Street Park - Motion by Councilor Vanni, seconded by Councilor Lebedynsky to award the bid for the Chestnut Street Park Improvements as per the bid tabulation of December 7, 2023, subject to review and approval of the Solicitor and the Parks & Recreation Director. Motion carried: 6 ayes.

g. Second Baptist Church - Motion by Councilor Kirkland, seconded by Councilor Vanni to grant the request of the Second Baptist Church for a Minor Land Development for the property located at 507 & 541 North Adams Street subject to compliance with the following conditions:

- i. Compliance with the Cedarville Engineering letter of November 15, 2023
- ii. Payment in full of all Borough Review fees
- iii. A favorable recommendation of the Pottstown Planning Commission at its December meeting

Motion carried: 6 ayes.

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h. Second Baptist Church - Motion by Councilor Kirkland, seconded by Councilor Lebedynsky to grant the following waiver requests from the Subdivision & Land Development Ordinance for the Second Baptist Church, 507 & 541 North Adams Street as referenced in the Schock Group LLC letter of December 1, 2023:

- i. Section 22-A402-1 – requirement to show features within 100 feet of site
- ii. Section 22- A402.2 – requirement to show contour lines and elevation within 100 feet of site
- iii. Section 22-A403.8 – requirement of right-of-way widths, cartway or pavement widths, sidewalks and approximate grades

Motion carried: 6 ayes.

i. Bright Hope Playground - Motion by Councilor Vanni, seconded by Councilor Procsal to grant the request of the Montgomery County Housing Authority for a Waiver of Financial Security for the Bright Hope Community Playground Construction project. Motion carried: 6 ayes.

j. Police Chief's Contract - Motion by Councilor Procsal, seconded by Councilor Vanni to approve and authorize the execution of a Fifth Addendum to the Police Chief's Contract. Motion carried: 6 ayes.

k. Animal Control Officer Agreement - Motion by Councilor Lebedynsky, seconded by Councilor Procsal to approve and authorize execution of a Third Amendment to the Animal Control Officer Agreement, between the Borough of Pottstown and Daywalt's Animal Control, LLC for an exchange of a vehicle and compensation, in an amount not to exceed \$11,000. Motion carried: 6 ayes.

l. Zoning - 101 East High Street – Motion by Councilor Vanni, seconded by Councilor Lebedynsky to authorize the Solicitor to send a letter to the Zoning Hearing Board to suggest the imposition of certain conditions on the zoning relief request of Monsef Bensaad for property located at 101 East High Street

Solicitor Garner suggested conditions could include that the plan is established as a grocery store with fresh foods, reasonable hours of a grocery store and limit any games of chance for skill games.

Motion carried: 6 ayes.

m. Zoning – 379 Cherry Street - Possible motion to authorize the Solicitor to send a letter of support to the Zoning Hearing Board regarding the zoning relief request of AMA Paper Products Company c/o Ibrahim Abdrabbo for property located at 379 Cherry Street

Councilor Procsal requested this be forwarded to the Zoning Hearing Board with no action from Council.

n. Meeting Schedule – January 2024 - Motion by Councilor Kirkland, seconded by Councilor Lebedynsky to approve and authorize advertisement of the 2024 Council Meeting Schedule for January 2024, as presented

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Mr. Keller advised that Council is required to meet on Tuesday, January 2nd and the regular date for the Committee of the Whole meeting, would be January 3rd. He requested Council's consideration to combine the Reorganization Meeting and the Committee of the Whole meeting to be held on January 2nd.

Motion carried: 6 ayes.

o. Meeting Schedule – 2024 - Motion by Councilor Procsal, seconded by Councilor Lebedynsky to approve and authorize advertisement of the 2024 Council Meeting Schedule for February 2024 to December 2024, as presented. Motion carried: 6 ayes.

REPORT OF BILLS - Motion by Councilor Lebedynsky, seconded by Councilor Procsal to pay the outstanding bills in the amount of \$1,677,113.31. Motion carried: 6 ayes.

ANNOUNCEMENTS

Councilor Procsal wished all Happy Holidays.

Councilor Kirkland with all Happy Holidays and wished prayers and support to the homeless.

Mayor Henrick spoke on behalf of Councilor Lindsay, noting the free Pottstown High School concert on December 13th and the Scout Troop 146PNG installed a new sign in Riverfront Park.

President Weand also thanked all involved with the wonderful holiday events and wished all Happy Holidays.

ADJOURNMENT

President Weand adjourned the meeting at 7:45p.m.

Submitted by,

Justin M. Keller
Borough Manager